

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 42-005
Amendment to Title 17 of the Chickasaw Nation Code
(Domestic Violence)

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules and regulations for domestic violence, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend those rules and regulations.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that any charges filed prior to the effective date of this Resolution against any person pursuant to any stricken or changed provisions herein shall continue and be unaffected by this Resolution.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that the sentence of any person convicted of an offense herein stricken or changed shall remain unaffected by this Resolution.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves that the provisions of this Resolution shall become effective upon publication in the Chickasaw Nation Code.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 17, Chapter 5, Article E, Section 17-505.1(E) of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 17-505.1 **DOMESTIC VIOLENCE.**

E. A second or subsequent conviction of Domestic Violence, a conviction of any other offense in the Article, or any other equivalent conviction in tribal, Federal, State, or municipal courts, shall be punishable by a fine not exceeding fifteen thousand dollars (\$15,000) or imprisonment not exceeding three (3) years, or both. **A prior conviction of Domestic**

Violence shall include any pleas of guilty, pleas of nolo contendere, or other findings of guilt to a violation of any provision of this Article, or any other equivalent provision in tribal, Federal, State, or municipal courts, including any such disposition resulting in a probationary term, whether the court suspended the sentence, in whole or in part, or the court deferred the imposition of judgement and sentence.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 17, Chapter 5, Article E, Section 17-505.4(C) and (D) of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 17-505.4 **DOMESTIC VIOLENCE IN PRESENCE OF MINOR.**

C. Domestic Violence in Presence of Minor shall be punishable by a fine not exceeding ~~five~~ **fifteen** thousand dollars (\$5,000 **15,000**) or imprisonment not less than sixty (60) days nor more than ~~one (1) year~~ **three (3) years**, or both such fine and imprisonment.

D. In addition to any other penalty specified by this Section, the Court may require a defendant to participate and complete a batterers intervention program or similar program.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 17, Chapter 5, Article E, Section 17-505.5(B) and (C) of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 17-505.5 **DOMESTIC VIOLENCE AGAINST A PREGNANT WOMAN.**

B. Domestic Violence Against a Pregnant Woman shall be punishable by a fine not exceeding ~~five~~ **fifteen** thousand dollars (\$5,000 **15,000**) or imprisonment not less than sixty (60) days nor more than ~~one (1) year~~ **three (3) years**, or both such fine and imprisonment.

C. In addition to any other penalty specified by this Section, the Court may require a defendant to participate and complete a batterers intervention program or similar program.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 17, Chapter 5, Article E, Section 17-505.6(C) of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 17-505.6**DOMESTIC VIOLENCE WITH A DANGEROUS WEAPON.**

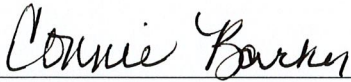
C. In addition to any other penalty specified by this Section, the Court may require a defendant to participate and complete a batterers intervention program or similar program.

BE IT FURTHER RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes and approves the following amendment to Title 17, Chapter 5, Article E, Section 17-505.7(C) of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

SECTION 17-505.7**AGGRAVATED DOMESTIC VIOLENCE.**

C. In addition to any other penalty specified by this Section, the Court may require a defendant to participate and complete a batterers intervention program or similar program.

Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on May 16, 2025, by a vote of 12 ayes, 0 nays, and 0 abstentions.

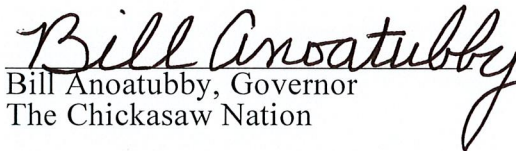


Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date:

MAY 16 2025

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 42-005
Amendment to Title 17 of the Chickasaw Nation Code
(Domestic Violence)

Explanation:

This Resolution amends provisions Title 17, Chapter 5, Article E. The amendment defines a prior conviction for purposes of sentencing enhancement in domestic violence cases in Section 17-505.1. The amendment defines Domestic Violence in the Presence of a Minor (Section 17-505.4) and Domestic Violence Upon a Pregnant Woman (Section 17-505.5) as felonies. The amendment also updates sections to include participation in a batterers intervention program as part of the sentence in those sections in which it was absent.

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature